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Case Name: *Skanska-Shimmick-Herzog v. LAN/T.Y. Lin, et al.*

Case No.: 24CV448840

SUPERIOR COURT OF CALIFORNIA**COUNTY OF SANTA CLARA**

Cross-Defendant Anil Verma Associates, Inc. (“AVA”) moves under Code of Civil Procedure Sections 428.10 and 428.50 *et seq.* for leave to file a permissive Cross-Complaint against Alliance Engineering Consulting, Inc. (“AEC”) on the grounds that AVA recently learned through discovery and communications with other parties of its causes of action contained in the proposed Cross-Complaint, which seeks affirmative relief on indemnity claims from a third party, AEC, who is not currently a party to this litigation. Notice of Motion (the “Motion”) at 2:1-10 (filed: April 21, 2026).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

As AVA’s Motion for Leave to File Cross-Complaint points out, this matter “involves a dizzying array and large volume of highly technical design professional construction claims.” (Motion at 4:24-25.) The Complaint which initiated the instant action was filed on October 4, 2024. In its First Amended Complaint (“FAC”), filed March 14, 2025, plaintiff Skanska-Shimmick-Herzog (“SSH”) asserts causes of action for negligence, breach of contract, and indemnity against Defendants Lockwood Andrews Newnam, Inc. (“LAN”), T.Y. Lin International, LAN/T.Y. Lin, and Does 1-30, inclusive.

This civil action arises from parties’ work on the Silicon Valley Berryessa Extension Project (“the Project”) for the Santa Clara Valley Transportation Authority (“VTA”). (FAC, ¶¶ 8-13.) In 2011, VTA hired SSH to be the design builder on the Project. (FAC, ¶¶ 10, 14.) In 2012, SSH entered into a subcontract with LAN and T.Y. Lin International for project design. (FAC, ¶¶ 11, 15.) SSH and Defendants “were involved in a prior lawsuit related to design errors and omission arising out of the project that damaged SSH.” (FAC, ¶ 17.) In March 2019, SSH and Defendants entered a settlement agreement that exempted some claims from the agreement. (FAC, ¶18.) In October 2019, SSH filed a complaint against VTA for “unpaid change orders and incentive payments on the project.” (FAC, ¶ 19.) VTA filed a cross-complaint against SSH. (FAC, ¶¶ 20, 21.) VTA and SSH settled in 2023. (FAC, ¶ 30.)

Neither Plaintiff’s Original Complaint nor the FAC named AVA as a defendant. AVA was not a party to this litigation until LAN filed a Cross-Complaint against AVA on December 8,

2024. Cross-Defendant AVA now seeks leave to file a permissive Cross-Complaint against yet another new party, AEC. AVA's motion is opposed and AVA filed a reply.

Analysis of the Motion

A party against whom a cause of action has been asserted in a Complaint may file a Cross-Complaint against another person alleged to be liable if the cause of action asserted in the Cross-Complaint arises out of the same transaction or occurrence as the cause of action in the original complaint. (Code Civ. Proc., § 428.10, subd. (b).) Leave to file a Cross-Complaint may be granted in the interest of justice at any time during the course of an action. (Code Civ. Proc., § 428.50, subd. (c).) Granting or denying a motion for leave to file a cross-complaint is “ordinarily a matter within the sound discretion of the trial court.” (*Orient Handel v. United States Fidelity and Guaranty Company* (1987) 192 Cal.App.3d 684, 701.)

In support of its Motion, AVA argues that “the specific claims being made against AVA appear wholly based on the scope of work performed by AVA’s electrical engineering consultant on the Project, AEC[.]” (Motion, p. 3:20-22.) AVA further argues that AEC’s relevance to the instant action was only discovered after “formal and informal discovery with other litigants” and after “additional information [was] made available to [AVA] in connection with the March 3, 2026, mediation in this matter.” (Motion, pp. 5:12-13, 3:18-22.)

In its Opposition to Motion for Leave to File Cross-Complaint (“Opposition”), SSH argues that AVA has unduly delayed in seeking to file a Cross-Complaint, because AVA “has always known who AEC was, what AEC was retained to do, and that AEC performed wayside electrical engineering services within AVA’s own Project scope.” (Opposition, p. 2:24-25.) SSH further argues that AVA has been on notice since LAN named AVA as a Cross-Defendant in December 2024 that “AVA’s entire scope [of work on the Project], including the work of AVA’s own subconsultants” would be at issue in this litigation. (Opposition, p. 2:25-28.) Additionally, SSH states that adding a Cross-Defendant now will necessitate additional discovery, motion practice, and expert work, resulting in prejudice to SSH. (Opposition, p. 2:24-27, 2:16-19.)

AVA admits in its Motion, as it must, that the Cross Complaint it seeks to file now is permissive, *not* compulsory. (Motion, p. 6:12-13.)

And in considering whether the Court should exercise its discretion to allow this permissive pleading to be filed now, the timing of this Motion matters. Trial rapidly approaches. As the Court made clear on June 22, 2026, in its Order Continuing Trial (*for the last time*): “All parties and all counsel are put on Notice that there will be no further continuance or delay of the January 25, 2027 Trial.” (Order Continuing Trial, ¶ 6.) So the Court now finds and rules that injecting a new party and new set of claims into an already complicated matter six months before trial is *not* in the interest of justice and judicial efficiency, particularly where AVA does not argue that it is at risk of forfeiture or waiver of claims against AEC if leave to file a permissive Cross-Complaint is denied.

Given that (1) AVA is free to bring indemnity claims against AEC outside this civil action and (2) this Court has been clear that it will not tolerate further delay in this matter, the Motion for Leave to file a permissive Cross-Complaint is **DENIED**.

Conclusion and Order

Accordingly, the Motion of Cross-Defendant Anil Verma Associates, Inc. under Code of Civil Procedure Sections 428.10 and 428.50 *et seq.* for leave to file a permissive Cross-Complaint against Alliance Engineering Consulting, Inc. is **DENIED**.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *John Roe 1, et al. v. Mountain View Whisman School District, et al.*

Case No.: 22CV408177

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Santa Clara Valley Unified School District (“SCUSD”) moves under Code of Civil Procedure Section 437c(f) for Summary Judgment or, in the alternative, Summary Adjudication in its favor and against Plaintiffs regarding claims in Plaintiffs’ Third Amended Complaint (“TAC”) as follows:

Issue No. 1: Plaintiffs’ claims fail as a matter of law because there is no vicarious liability for SCUSD because SCUSD did not employ Defendant Roger Ray Murray (“Murray”).

Issue No. 2: Plaintiffs cannot recover under a theory of negligence because there is no evidence that SCUSD knew or should have known of Murray’s propensity to commit sexual abuse.

Issue No. 3: SCUSD cannot be liable for a violation of the Child Abuse and Neglect Reporting Act (Pen. Code §§ 11164 *et seq.*) (“CANRA”) as a matter of law because all conduct occurred prior to enactment of CANRA.

Issue No. 4: Plaintiffs’ Fourth Cause of Action for failure to warn, train, or educate Plaintiffs fails as a matter of law because SCUSD did not have a statutory duty to warn Plaintiffs on the risk of sexual abuse by third parties and how to avoid the risk.

Issue No. 5: SCUSD has immunity for conduct which occurred off campus after school hours.

Notice of Motion (the “Motion”) at 1:25—2:13 (filed: Sept. 24, 2025).

The Motion is made on the grounds that there is no triable issue of material fact as a matter of law. *Id.* at 2:14-15.

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.